Zimbabwe

International Treaties Act, 2020

Chapter 3:05

Legislation as at 10 July 2020

There may have been updates since this file was created.

PDF created on 6 June 2025 at 10:46.

Collection last checked for updates: 31 December 2017.

View online

About this collection

The legislation in this collection has been reproduced as it was originally printed in the Government Gazette, with improved formatting and with minor typographical errors corrected. All amendments have been applied directly to the text and annotated. A scan of the original gazette of each piece of legislation (including amendments) is available for reference.

www.laws.africa
info@laws.africa

FRBR URI: /akn/zw/act/2020/2/eng@2020-07-10

There is no copyright on the legislative content of this document.
This PDF copy is licensed under a Creative Commons Attribution 4.0 License (CC BY 4.0). Share widely and freely.

International Treaties Act, 2020 (Chapter 3:05)
Contents

1. Short title 2

2. Interpretation 2

3. Application of Act 2

4. Principal national depositary and archive of international treaties 3

5. Appointment and functions of PAAC 3

6. International treaties to be concluded under President's authority 3

7. Publication and date of operation of international treaties 4

8. Treaties Lists 5

9. International treaties concluded before this Act 5

10. Effect of publication or non-publication of international treaties and non-compliance with certain pre-ratification formalities 5

11. Minister's regulatory and other powers 6

12. Savings 6

Zimbabwe

International Treaties Act, 2020

Chapter 3:05

Published on 10 July 2020

Commenced on 10 July 2020

[This is the version of this document from 10 July 2020.]

To provide a uniform procedure for the consideration, approval, ratification and publication of international treaties; and to provide for matters incidental to or connected therewith.

WHEREAS section 34 of the Constitution provides as follows:

"The State must ensure that all international conventions, treaties and agreements to which Zimbabwe is a party are incorporated into domestic law."

AND WHEREAS section 327 of the Constitution provides as follows:

"(1) In this section—

"international organisation" means an organisation whose membership consists of two or more independent States or in which two or more independent States are represented;

"international treaty" means a convention, treaty, protocol or agreement between one or more foreign States or governments or international organisations.

(2) An international treaty which has been concluded or executed by the President or under the President's authority—

(a) does not bind Zimbabwe until it has been approved by Parliament; and

(b) does not form part of the law of Zimbabwe unless it has been incorporated into the law through an Act of Parliament.

(3) An agreement which is not an international treaty but which—

(a) has been concluded or executed by the President or under the President's authority with one or more foreign organisations or entities; and

(b) imposes fiscal obligations on Zimbabwe;

does not bind Zimbabwe until it has been approved by Parliament.

(4) An Act of Parliament may provide that subsections (2) and (3)—

(a) do not apply to any particular international treaty or agreement or to any class of such treaties or agreements; or

(b) apply with modifications in relation to any particular international treaty or agreement or to any class of such treaties or agreements.

(5) Parliament may by resolution declare that any particular international treaty or class of international treaties does not require approval under subsection (2), but such a resolution does not apply to treaties whose application or operation requires—

(a) the withdrawal or appropriation of funds from the Consolidated Revenue Fund; or

(b) any modification of the law of Zimbabwe.

(6) When interpreting legislation, every court and tribunal must adopt any reasonable interpretation of the legislation that is consistent with any international convention, treaty or agreement which is binding on Zimbabwe, in preference to an alternative interpretation inconsistent with that convention, treaty or agreement.".

AND WHEREAS it is expedient to legislate a uniform procedure for the consideration and approval of international agreements before their ratification by Parliament, and for their publication after their ratification or, in some cases, before their ratification:

NOW, THEREFORE, be it enacted by the President and the Parliament of Zimbabwe as follows:—

1. Short title

This Act may be cited as the International Treaties Act *[Chapter 3:05]*.

2. Interpretation

(1) In this Act—

"**concluded**", when used in relation to an international treaty, means that the treaty has been approved by Cabinet and Parliament and ratified or acceded to by the President, and the word "conclude" shall be construed accordingly;

"**domesticate**", in relation to an international treaty, means to give it the force of law in Zimbabwe, whether in terms of this Act or by altering, or incorporating the treaty into, the domestic law of Zimbabwe;

"**international treaty**" has the meaning given to it by the section 327 of the Constitution;

"**Minister**" means the Minister responsible for foreign affairs;

"**Ministry**" means the Ministry for which the Minister is responsible;

"**negotiating Ministry**" means the Ministry responsible for negotiating an international treaty;

"**PAAC**" means the Public Agreements Advisory Committee appointed in terms of section 5;

"**partially self-executing**", in relation to an international treaty, means a treaty in respect of which some provisions are self-executing within the domestic law of Zimbabwe and severable from the other provisions of the treaty that require domestication;

"**publish**", in relation to an international treaty, means to publish it by statutory instrument in accordance with section 7;

"**self-executing**", in relation to an international treaty, means requiring no alteration of the domestic law or no additional legislation in order to domesticate it;

"**Treaties Lists**" means the Treaties List and supplementary lists of all international treaties maintained and kept up to date by PAAC in accordance with section 8.

(2) If any question arises as to the meaning of a "foreign organisation or entity" in connection with the application of section 327 of the Constitution, or in any other legal context in which the scope of Zimbabwe's foreign obligations is in issue, that phrase (or "foreign organisation" or "foreign entity") shall mean any corporate entity domiciled or incorporated outside Zimbabwe.

3. Application of Act

This Act shall not apply to the publication or domestication of international treaties in respect of which a different method of publication or domestication is provided for under another Act of Parliament.

4. Principal national depositary and archive of international treaties

(1) The Ministry shall be the principal custodian and principal national depositary of all international treaties.

(2) The Ministry shall open and maintain an official archive of all international treaties currently in force, access to which shall be afforded to any interested person subject to such conditions, including the payment of any fee for access to the archive or the provision of authenticated copies of any international treaty, as may be prescribed under section 11.

5. Appointment and functions of PAAC

(1) The Minister shall establish a committee, called the Public Agreements Advisory Committee, consisting of—

(a) a person nominated by the Attorney-General after consultation with the Minister responsible for justice, who shall be the chairperson of PAAC; and

(b) a senior official in the Ministry appointed by the Minister, who shall be the secretary of PAAC; and

(c) a senior official in the Ministry responsible for finance nominated by the Minister responsible for finance; and

(d) a person nominated by the Office of the President and Cabinet.

(2) Without derogation of its other functions PAAC shall be able—

(a) to scrutinise all international treaties in accordance with section 6(3); and

(b) where appropriate, to recommend the approval or scrutiny of bilateral or multilateral agreements other than international treaties; and

(c) to recommend or decline to recommend approval of any international treaty in accordance with section 6(3)(c) or (d); and

(d) to maintain and keep up to date the Treaties Lists in terms of section 8; and

(e) to perform such other functions in connection with international treaties as the Minister may direct.

6. International treaties to be concluded under President's authority

(1) Except as otherwise provided by the Constitution or by or under an Act of Parliament, every international treaty shall be concluded or executed by or under the authority of the President.

(2) As soon as practicable after the negotiation of any international treaty, the head of the Ministry responsible for negotiating it (hereinafter referred to as the "negotiating Ministry") shall submit or cause to be submitted a draft thereof to PAAC, together with such additional information in writing relating to the treaty that PAAC may reasonably require.

(3) Upon receipt of a draft international treaty PAAC may—

(a) recommend to the negotiating Ministry that the treaty be renegotiated; or

(b) recommend to the negotiating Ministry that the treaty be submitted to the Attorney-General's Office for redrafting; or

(c) recommend to the Minister and to the negotiating Ministry that the treaty be approved, without alteration or with such minor alterations as it shall specify, by the President in Cabinet; or

(d) recommend to the Minister and to the negotiating Ministry that the treaty not be approved by the President in Cabinet, giving its reasons why.

(4) If a recommendation of PAAC referred to in—

(a) subsection (3)(a) or (b) is adopted, the negotiating Ministry shall comply with subsection (2) as soon as practicable after the treaty has been renegotiated or redrafted, as the case may be;

(b) subsection (3)(c) is adopted, the negotiating Ministry shall, as soon as practicable thereafter, take all the necessary steps—

(i) to secure the approval of the treaty by Cabinet; and

(ii) if the treaty is approved in terms of subparagraph (i), to secure its approval by Parliament in accordance with the Constitution; and

(iii) if the treaty is approved in terms of subparagraph (ii), to secure the ratification of or accession to the treaty by the President.

7. Publication and date of operation of international treaties

(1) As soon as practicable after the approval by Cabinet of any international treaty, but before its approval by Parliament, PAAC may, through the Minister, recommend to the President the publication by statutory instrument of the treaty for public information if, in its opinion, the importance of the treaty merits such a course:

Provided that such publication shall be accompanied by a notice in the *Gazette* in the name of the chairperson of PAAC specifying that the treaty is yet to be approved by Parliament and that it is published for public information only.

(2) Where an international treaty is published in terms of subsection (1), copies of the statutory instrument embodying the treaty shall, if it has been approved by Cabinet, be laid before Parliament for the purposes of securing the approval of the treaty.

(3) Subject to subsections (4) and (8), every international treaty which has been approved by Cabinet and Parliament and ratified or acceded to by the President shall be published by the President by statutory instrument.

(4) Any international treaty which falls within the scope of the prerogative powers of the President in the sphere of international relations, may be published by the President by statutory instrument at his or her sole discretion.

(5) Publication of an international treaty in terms of subsection (3) shall be accompanied by a general notice in the *Gazette* in the name of the chairperson of PAAC specifying that—

(a) the treaty is—

(i) wholly or partially self-executing and accordingly domesticated with effect from the date referred to in paragraph (b); or

(ii) requires to be domesticated by altering, or incorporating the treaty into, the domestic law of Zimbabwe;

(b) the treaty comes into force, wholly or partially—

(i) on the date of publication of the statutory instrument embodying the treaty; or

(ii) on the date specified in the general notice; or

(iii) on the date fixed in the treaty; or

(iv) on a future date not fixed in the treaty upon the fulfilment of certain conditions or formalities stipulated in the treaty;

whichever is appropriate to the treaty in question.

(6) Where an international treaty that is published in terms of subsection (3) requires to be domesticated, the negotiating Ministry shall submit the treaty to the Attorney-General's Office for the necessary draft legislation to be prepared and take all other steps necessary to secure its approval by Cabinet and Parliament.

(7) Where an international treaty that is published in terms of subsection (3) requires to be domesticated, it shall not be necessary in any legislation domesticating it to enact the terms of the treaty itself if reference is made in the legislation to the statutory instrument embodying the treaty.

(8) If by reason of its size or other good reason it is not, in the opinion of PAAC, desirable to publish an international treaty as a statutory instrument, it shall not be necessary to do so, but in that case the general notice referred to in subsection (5) shall specify an office or offices in Zimbabwe where such treaty may be inspected free of charge for an indefinite or specified period of time.

8. Treaties Lists

(1) PAAC shall maintain and keep up to date the Treaties Lists from time to time.

(2) PAAC may, on its own initiative, or shall, on the instructions of the Minister, publish the Treaties Lists by notice in the *Gazette*.

9. International treaties concluded before this Act

(1) Section 7(3), (4), (5), (6) and (7) applies to every international treaty that was concluded before the date of commencement of this Act.

(2) Every Ministry or department of Government that is the custodian or depositary of an treaty referred to in subsection (1) shall, upon a request in writing to that effect by the Chairperson of PAAC, make available to PAAC an authenticated copy of the treaty for the purposes of subsection (1).

10. Effect of publication or non-publication of international treaties and non-compliance with certain pre-ratification formalities

(1) A statutory instrument embodying an international treaty, together with the *Gazette* general notice under cover of which it was published in terms of section 7(5), may be produced in any court as evidence of—

(a) the fact that Zimbabwe is a party to the treaty; and

(b) the date when the treaty came into force; and

(c) the terms of the treaty; and

(d) whether or not any of its provisions form part of the domestic law of Zimbabwe.

(2) Where, in terms of section 7(8), an treaty was not published as a statutory instrument, the *Gazette* general notice published in terms of section 7(5) which relates to that treaty may be produced in any court as evidence of the matters referred to in subsection (1)(a), (b) and (d).

(3) The validity under the law of Zimbabwe or at international law of any international treaty referred to in section 9 shall not be questioned solely on the basis that it has not been published in terms of this Act.

(4) The failure by PAAC to comply with any of the formalities preliminary to approval and ratification of an international treaty referred to in section 6(2), (3) and (4) shall not invalidate such treaty.

11. Minister's regulatory and other powers

The Minister may make such regulations and give such directions as he or she may deem necessary or convenient for the carrying out of the objects and purposes of this Act.

12. Savings

The Public Agreements Advisory Committee that was established before the date of commencement of this Act shall continue to function as if appointed in terms of section 5.

By Laws.Africa and contributors. Licensed under CC-BY. Share widely and freely.